

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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VICTOR RUIZ, VICTORIA RIVERA, CASEY RIVERA
AND ROBERT SILVA

PLAINTIFFS,

Index No. 308272-2011
Amended
SUMMONS

-AGAINST-

NEW YORK CITY, DETECTIVE JOSE VARGAS,
DETECTIVE MARQUEZ, DETECTIVE SCALLABA,
and DETECTIVE MENDEZ, individually, and in their
capacities as members of the New York City Police
Department.

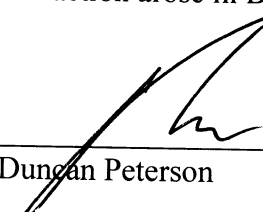
DEFENDANTS.
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To the above named defendants:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiffs' attorneys a
verified answer to the verified complaint in this action within twenty days after the service of this
summons, exclusive of the day of service, or within thirty days after service is complete if this
summons is not personally delivered to you within the State of New York. In case of your failure
to answer, judgment will be taken against you by default for the relief demanded in the
complaint.

The basis of venue designated above is that the cause of action arose in Bronx County.

Dated: November 7, 2012

By: 

Duncan Peterson

PetersonDelleCave LLP
Attorney for Plaintiffs
233 Broadway, Suite 1800
New York, NY 10279
(212) 240-9075

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VICTOR RUIZ, VICTORIA RIVERA, CASEY RIVERA
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PLAINTIFFS,

Index No. 308272-2011

-AGAINST-

**AMENDED VERIFIED
COMPLAINT**

NEW YORK CITY, DETECTIVE JOSE VARGAS,
DETECTIVE MARQUEZ, DETECTIVE SCALLABA,
and DETECTIVE MENDEZ, individually, and in their
capacities as members of the New York City Police
Department.

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PRELIMINARY STATEMENT

1. This is a civil action in which Plaintiffs seeks relief for the violation of their rights secured by 42 USC 1983, the Fourth and Fourteenth Amendments to the United States Constitution, and New York State law.
2. The claims arise from an incident on September 18, 2010, in which officers of the New York City Police Department acting under color of state law, intentionally and willfully subjected Plaintiffs to *inter alia* assault, battery and false arrest using excessive force.
3. Plaintiffs seek monetary damages (special, compensatory, and punitive) against defendants as an award of costs and attorneys' fees, and such other and further relief as this Court deems just and proper.

PARTIES

4. Plaintiff Ms. Victoria Rivera (“Victoria”), Plaintiff Mr. Victor Ruiz, (“Victor”) and Plaintiff Casey Rivera (“Casey”) are United States citizens and previously resided at 3655 Willet Avenue, Bronx, NY 10467.
5. Victoria, Victor and Casey currently reside at 289 West 1st Street, Mt. Vernon, NY10550.
6. Victoria is the mother of Victor and Casey.
7. Plaintiff Mr. Robert Silva (“Robert”) is a United States Citizen and at all times here relevant resided at 980 Columbus Avenue, New York, NY 10025.
8. Robert is Victoria’s nephew.
9. The City of New York is a municipal corporation organized under the laws of the State of New York.
10. Detective Jose Vargas (“Detective Vargas”), Detective Marquez, Detective Scallaba, and Detective Mendez are sued in their individual and professional capacities.
11. At all times mentioned, defendants were acting under color of state law under color of the statutes, ordinances, regulations, policies and customs and usages of the City of New York.

FACTUAL ALLEGATIONS

12. On or about Saturday, September 18, 2010, Victor and Casey were at the intersection of Willet Avenue and 216th Street in the Bronx, around the corner from their residence at 3655 Willet Avenue.
13. Victor had a joint in his possession.
14. 216th Street is a one-way-street.

15. Casey noticed a van coming the wrong way along 216th street.
16. Casey shouted at the van that it was going the wrong way on a one-way-street.
17. The van then pulled up beside Casey and Victor.
18. Detective Vargas got out of the van, grabbed Casey by the shirt, and told him to “shut the fuck up.”
19. Detective Marques also got out of the van and grabbed Victor’s arm and twisted it behind his back.
20. Detective Vargas and Detective Marquez had not identified themselves as police officers at this point.
21. Detective Vargas and Detective Marquez then identified themselves as police officers.
22. Detective Marques then forced Victor against a parked van and Detective Vargas punched Victor in his stomach.
23. Victor fell to his knees, whereupon Detective Vargas handcuffed Victor’s hands and feet.
24. Detective Vargas and Detective Marquez then took Victor to their police van and threw him into the back.
25. Victor told Detective Vargas and Detective Marquez that the cuffs were too tight.
26. Detective Vargas and Detective Marquez responded by squeezing the cuffs tighter on Victor’s hands and feet.
27. Casey asked Detective Vargas and Detective Marquez where they were taking Victor, but they refused to answer.
28. Victoria and Robert joined Casey at the scene.

29. Robert and Casey then went back to the house.
30. Another unmarked police van arrived at the scene.
31. Detective Scallaba and Detective Mendez got out of this unmarked police van.
32. One of the police officers then shouted: "grab the brother as well."
33. Detective Scallaba ran towards Robert, who was standing on the step outside of 3655 Willet Avenue.
34. Without any legal justification, Detective Scallaba put Robert in a headlock and struck him with his fists several times to the side of Robert's face.
35. Robert fell to his knees, whereupon Detective Scallaba, without any probable cause or legal justification, handcuffed Robert behind his back.
36. Robert was put in the back of the second unmarked police van.
37. Detective Scallaba and Detective Mendez, without any probable cause or legal justification, then arrested Casey.
38. Casey was led back to the street whereupon Detective Scallaba punched him in his stomach and chest.
39. Casey was then put in the back of the second unmarked police van.
40. Victor was then moved from the back of the original police van and taken to the second unmarked police van.
41. Victor's hands and feet were still cuffed.
42. Victor was thrown into the back of the second unmarked police van by Detective Scallaba, hitting his head and shoulder on the metal floor.
43. Victoria asked the police officers why they were beating her family, what precinct they were from, and where they were taking them.

44. The police officers responded by arresting Victoria without any probable cause or legal justification.
45. The police officers told Victoria, "We're from the FBI – look us up."
46. Victoria was put in the back of the second unmarked police van with Victor, Robert and Casey.
47. Victoria, Victor, Casey and Robert were kept in the back of the van for several hours.
48. The police officers stopped to eat pizza while Victoria, Victor, Casey and Robert were still in the back of the van.
49. Eventually, Victoria, Victor, Casey and Robert were taken to the 41st Precinct.
50. At the Precinct, Victor, Casey and Robert were each led separately to an empty room where PO John Doe ordered them to remove all of their clothes to allow PO John Doe to carry out a visual body cavity inspection of each of them.
51. After several hours at the precinct, Victoria, Victor, Casey and Robert were taken to Bronx Central Booking.
52. Victoria, Victor, Casey and Robert were held in a cell at Bronx Central Booking overnight.
53. No formal charges were brought against Victoria or Robert nor were Victoria or Robert arraigned.
54. The next morning, on or about September 19, 2010, Victoria and Robert were released from Bronx Central Bookings through a side door.
55. Victor was charged with criminal charges.
56. Casey was charged with criminal charges.
57. Casey and Victor were released later in the day, on or about September 19, 2010.

58. Following the incident, Victoria, Victor, Casey and Robert all suffered pain in their wrists as a result of the handcuffs being on too tight.
59. Victoria, Victor, Casey and Robert all had marks on their wrists for several weeks after the incident as a result of the handcuffs being on too tight.
60. On September 20, 2010, Victor and Robert went to St Luke's Emergency Department.
61. Robert was diagnosed with a head injury and muscle strain.
62. As a result of the injury to his wrists, Victor was unable to attend school for three days and was unable to play basketball, football and handball for a sustained period of time.
63. As a result of defendants' actions, Victoria, Victor, Casey and Robert have been damaged physically, economically, and emotionally and have suffered fear, embarrassment, humiliation, emotional distress, frustration, anxiety, loss of liberty, and financial loss.
64. Victoria, Victor, Casey and Robert feel traumatized by these events and are wary and fearful when they see NYPD officers. Victoria's three-year-old granddaughter, who was present at the house during the incident, has also been traumatized by these events and is terrified every time she sees a police officers or white vans. Victoria, Victor, Casey and Robert take efforts to avoid police officers when in public.

FIRST CAUSE OF ACTION

(Assault)

65. Plaintiffs repeat and realleges each of the preceding allegations of this Complaint as if fully set forth herein.

66. Defendants approached plaintiffs Victor, Robert and Casey, and made plaintiffs Victor, Robert and Casey fear for their physical wellbeing and safety and placed them in apprehension of immediate harmful and/or offensive touching.
67. Defendants are liable to plaintiffs Victor, Robert and Casey under the laws of the State of New York and the New York State Constitution.
68. Plaintiffs were damaged by defendants' assault in an amount believed to equal or the jurisdictional limit of this court.

SECOND CAUSE OF ACTION

(Battery)

69. Plaintiffs repeat and reallege each of the preceding allegations of this Complaint as if fully set forth herein.
70. The defendants intentionally subjected plaintiffs Victor, Robert and Casey to harmful and offensive touching, which plaintiffs Victor, Robert and Casey did not consent to.
71. Defendants are liable to plaintiffs Victor, Robert and Casey under the laws of the State of New York and the New York State Constitution.
72. Plaintiffs were damaged by defendants' battery in an amount believed to equal or exceed the jurisdictional limit of this court.

THIRD CAUSE OF ACTION

(42 USC 1983 – Excessive Force)

73. Plaintiffs repeat and reallege each of the preceding allegations of this Complaint as if fully set forth herein.
74. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights under color of law and are liable to plaintiffs under 42 USC 1983.

75. Defendants have deprived plaintiffs of their right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that defendants used excessive and unreasonable force in effecting the arrest of plaintiffs.
76. Plaintiffs have been damaged as a result of defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this court.

FOURTH CAUSE OF ACTION

(42 USC 1983 – False Arrest)

77. Plaintiffs repeat and reallege each of the preceding allegations of this Complaint as if fully set forth herein.
78. Defendants have deprived plaintiffs Victoria, Robert and Casey of their civil, constitutional and statutory rights under color of law and are liable to plaintiffs Victoria, Robert and Casey under 42 USC 1983.
79. Defendants have deprived plaintiffs Victoria, Robert and Casey of their right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that plaintiffs Victoria, Robert and Casey were falsely arrested by defendants.
80. The defendants unreasonably and unjustifiably confined plaintiffs Victoria, Robert and Casey.
81. Plaintiffs Victoria, Robert and Casey was aware of, and did not consent to, their confinement.
82. The confinement was not privileged.

83. Plaintiffs Victoria, Robert and Casey have been damaged a result of defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this court.

FIFTH CAUSE OF ACTION

(42 USC 1983 – Malicious Prosecution)

84. Plaintiffs repeat and reallege each of the preceding allegations of this Complaint as if fully set forth herein.

85. Defendants have deprived plaintiff Casey of his civil, constitutional and statutory rights under color of law and are liable to Casey under 42 USC 1983.

86. Defendants have deprived plaintiff Casey of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that Casey was maliciously prosecuted by defendants.

87. The malicious prosecution was initiated by the defendants without legal justification and without probable cause, in that the defendants caused the commencement and continuation of criminal proceedings against plaintiff Casey, the proceedings terminated in favor of Casey, and in that the action was commenced and continued intentionally and with malice and deliberate indifference to Casey's rights.

88. Plaintiff Casey has been damaged a result of defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this court.

SIXTH CAUSE OF ACTION

(Fourth and Fourteenth Amendment to United States Constitution– Unreasonable Search)

89. Plaintiffs repeat and reallege each of the preceding allegations of this Complaint as if fully set forth herein.

90. Defendants have deprived plaintiffs Victor, Casey and Robert of their right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that plaintiffs Victor, Casey and Robert were subjected to an improper visual body cavity inspection by defendants without a specific factual basis supporting a reasonable suspicion to believe that plaintiffs secreted evidence inside a body cavity
91. Plaintiffs has been damaged a result of defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this court.

JURY DEMAND

92. Plaintiffs demand a trial by jury.

WHEREFORE, plaintiffs respectfully request that the court enter a Judgment against defendants together with costs and disbursements as follows:

In favor of plaintiffs in an amount to be determined by a jury, but at least equal or exceeding the jurisdictional limit of this court, for each of plaintiffs' causes of action;

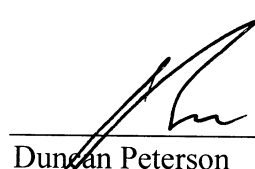
Awarding plaintiffs punitive damages in an amount to be determined by a jury;

Awarding plaintiffs reasonable attorneys' fees, costs and disbursements of this action;

And such other and further relief as the Court deems just and proper.

Dated: New York, New York
November 7, 2012

By: _____


Duncan Peterson
PetersonDelleCave LLP
Attorney for Plaintiff
233 Broadway, Suite 1800
New York, NY 10279
(212) 240-9075

ATTORNEY'S VERIFICATION

Duncan Peterson, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **PetersonDelleCave LLP**, attorneys for Plaintiffs herein.
I have read the annexed

Supplemental Summons and Amended Complaint

and know the content thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs do not reside presently in New York County wherein I maintain my offices.

Dated: New York, New York
November 7, 2012



Duncan Peterson

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DEFENDANTS.

SUPPLEMENTAL SUMMONS AND AMENDED COMPLAINT

**DUNCAN PETERSON
PETERSONDELLECAVE LLP
233 BROADWAY, SUITE 1800
NEW YORK, NY 10279
(212) 240- 9075**

TO: NEW YORK SUPREME COURT, BRONX COUNTY

Date: November 7, 2012

Yours sincerely,

DUNCAN PETERSON